



The Dragging Feet towards Drag and Queer Rights: Democratizing Expressions, Dissent, and Social Media Activism

Paul Gabriel T. Barranco

Social media has expanded the range of possibilities for the citizenry to exercise their rights enshrined under the 1987 Constitution. In the digital revolution, views on democracy and social media are now considered mutually inclusive, where these significantly impact discourses and beliefs between the body politic and the government.¹ This afforded elevation to different marginalized sectors and institutions to collectively rally for their rights, demand for accountability, and call for social justice.

Over the years, social media have impacted the domain of legal advocacy, paving the way to reshape and democratize expression, public opinion, and access to justice.² Status quo provides sectoral groups like the LGBTQIA+ community the opportunity to maximize their calls and grievances or simply express their creativity and queerness in different social media platforms such as Facebook, Twitter/X, Instagram, and a lot more. At large, while the struggle of the queer community persists on physical grounds towards the attainment of genuine freedom of expression, this struggle migrates to a relatively wider space on social media, posing a threat to how the community exercises its rights to expression and its collective voices in the plight to recognition and protection from discrimination.

LGBTQIA++ Voices in Society and Social Media

Various studies find that members of the LGBTQIA+ Community are prone to greater threats of stigma and discrimination in different sectors such as employment, health care, and education which is attributable to the disparity of opportunities that exist for better living conditions, in relation to the mental and physical well-being of cisgender persons.³ The Bill of Rights under the 1987

¹ Wike, Richard, Silver Laura, Fetterolf, Janell, Huang, Christine, Austin, Sarah, Clancy, Lura, and Gubbala, Sneha, *Views of social media and its impacts on society*, (December 6, 2022), <https://www.pewresearch.org/global/2022/12/06/views-of-social-media-and-its-impacts-on-society-in-advanced-economies-2022/>

² Kyomugisha, Asiimwe, *The Impact of Social Media on Legal Advocacy*, (December 2024), https://www.researchgate.net/publication/387437388_The_Impact_of_Social_Media_on_Legal_Advocacy

³ Delos Reyes, Rod Charlie and Blanco, Mark André, *Anti-Discrimination Bill based on SOGIE: An Occupational Justice Perspective*, (February 2022), socialhealthjournal.ust.edu.ph/wp-content/uploads/2022/02/Anti-Discrimination-Bill-based-on-SOGIE-An-Occupational-Justice-Perspective.pdf



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Constitution contemplates equal protection under the laws, and its State Policy underscores the imperative of upholding human dignity and the full respect of human rights.⁴ At present, there are no existing laws in the Philippines that protect members of the queer community from discrimination, where the status of the institutionalization of the SOGIE Equality Bill suffers a roadblock which continues to be of heavy debate in Congress. The lack of a national policy enabling the protection of these people belonging in the LGBTQIA+ sector from duress remains an imperative that should be addressed, notwithstanding the long line of abuse and discrimination that these individuals have experienced, resulting in a violation of their human rights.⁵

While this situation exists as a reality for a majority that belong to the community, efforts to drive action in institutionalizing the enactment of the SOGIE Equality bill continue to emerge in different on-site and online platforms. The plight of the LGBTQIA+ Community in the Philippines have since grown and emerged in different areas, one of which are social media sites, that has since become a primary means of expression due to its range and accessibility. Moreso after the pandemic era, the purpose of social media has expanded from a simple means of communication to growing into an independent society of people connected by technology. This imparted an opportunity to further the calls for sustainable measures in different fields including the government and the law.

These calls are exercised by means of activism that not only grants the opportunity but also strengthens queer voices for dialogue and action. Social media activism as an act, does not only solidify a community by making their struggles be heard, but reframing the dimensions of their political self and values, thereby fusing complex political identities.⁶ More than consolidating a community bound by struggle, the act of engaging and interacting in such a community can already be considered as an exercise of one's freedom of expression. Recognizably, while social media allows a more transparent movement, it also has the tendency to become an echo chamber for selected

⁴ 1987 Constitution.

⁵ Philippine Commission on Women, Women's Priority Legislative Agenda, *Enacting a Law Prohibiting Discrimination based on Sexual Orientation, Gender Identity, and Expression (SOGIE)*, (2019), <https://pcw.gov.ph/assets/files/2019/10/PCW-WPLA-PB-08-Enacting-the-Anti-Discrimination-based-on-SOGIE-Act-AEB.pdf>

⁶ Barassi V, *Social Media Activism, Self-Representation and the Construction of Political Biographies in Routledge Companion to Media and Activism*, (2018), https://research.gold.ac.uk/id/eprint/23736/3/V.Barassi%20Media%20Activism_Routledge%20Companion.pdf



audiences.⁷ Nonetheless, it remains to be significant, especially in the Philippine setting, given the narrow opportunities to be heard amidst the culture of misinformation and fear.

The age of digitalization functions positively and negatively in the exercise of one's constitutional guarantee of the freedom of expression. This has affected a variety of dimensions when it comes to a person's constitutional rights, especially the freedom of expression and the right to privacy.⁸ Statutes such as RA 10175 or the Cybercrime Prevention Act of 2012, have been criticized by some women-led movements, raising an issue of how the law penalizes women for expressing themselves and celebrating their agencies in the digital realm.⁹ Thus, there remains to be wall to the degree of liberality enjoyed by people online, conceding to the standard that not all rights are absolute. Relating this to the migration of the founding voices of Queer activism in the Philippines to the online realm, the struggle to freely speak and be heard remains to be in a state of volatility, considering the opinions that contain the queer struggle in plain black and white.

As a means of dissent, Queer activism on social media spaces allows itself to be a discourse in popular culture, positioning narratives to be an important point of conversation, not just a tokenistic trend in these social media sites. This act manifests itself in a variety of ways: from sharing meaningful articles, writing down and posting video content, and the annual celebration of pride, which is a display of society's collective interest in attaining equity for members of the LGBTQIA++ Community. Arguably, while these social media websites offer a preview for the queer community to achieve silver linings, it is not without risks considering the prevailing struggle on fake news and red tagging.

The threats to freedom of expression continue to be rampant on social media. In the Philippines, reports show that state authorities through various agencies, such as the NTF-ELCAC, poses risks to various dissenting voices, tagging them as "terrorists" that bolsters red tagging incidents that are already looming online.¹⁰ This, notwithstanding the mental and physical anguish that it

⁷ Murthy, Dhiraj, *Introduction to Social Media, Activism, and Organizations*, (2018), journals.sagepub.com/doi/pdf/10.1177/2056305117750716

⁸ Universal Periodic Review, *HUMAN RIGHTS AND THE PHILIPPINE DIGITAL ENVIRONMENT*, (2016), https://upr-info.org/sites/default/files/documents/2017-04/js11_upr27_phl_e_main.pdf

⁹ *Id.*

¹⁰ Amnesty International, *Philippines: Authorities increasingly using Facebook to stifle young activists' right to freedom of expression and protest*, (2014),



causes to different Filipinos, stands as an existing threat to democracy and people's fundamental rights to freedom of speech. Taken vis a vis queer activism, exacerbates the struggles that the LGBTQIA+ community already experiences. The lack of a national policy against discrimination for the queer community already presents a threat to security, all the with how social media, as an accessible means to express oneself positions itself in status quo, renders a chilling effect to the voices of those who identify as queer.

The material conditions and facts existing in status quo is central in policy development and governance as they form part of the issues that need to be addressed by the government. As a first step, discourses that shape public opinion raises the chances of a circumstance or event that to be recognized, prioritized, and institutionalized by the three main branches of the government. At present, while there has already been attempts to amplify the rights of the LGTBQ+ Community, the SOGIESC Equality Bill, its latest version being lobbied as the "Anti-Discrimination on the Basis of Sexual Orientation, Gender Identity and Expression," remains to be dormant for almost two decades, after being first introduced in the 11th Congress by the late Senator Miriam Defensor Santiago.¹¹ Despite of these movements, the passage of the SOGIESC Equality Bill remains untouched where it became a source of discussion of different LGTBQIA+ Rights movements, universities, and advocacy-based organizations. Collectively, as these issues continue to take up space in social media spaces, incubates the need for immediate legislative action to recognize the rights of the people under this sector.

Queer Voices and the Freedom of Expression online

Recently, one of the most pressing issues revolving around the LGBTQIA+ Community in the Philippines is the case concerning Amadeus Fernando Pagente, a drag artist who performs as Pura Luka Vega. The drag artist garnered criticism from different religious groups, after social media netizens found that she used the religious Catholic Song, "Ama Namin" in one of her performances while being dressed up in drag as the black nazarene, posted and circulated in various social media websites. This escalated into a criminal case for violations of Article 201, Section (2)(b)(3) and (2)(3)(5) of the Revised Penal Code for Immoral doctrines, Obscene Publications and

<https://www.amnesty.org/en/latest/news/2024/10/philippines-authorities-using-facebook-to-red-tag-young-activists/>

¹¹ Abad, Michelle, *TIMELINE: SOGIE equality in the Philippines*, (August 28, 2019), <https://www.rappler.com/newsbreak/iq/238593-timeline-sogie-equality-philippines/>



Exhibitions, and Indecent Shows in relation to RA 10175. The case of Pura Luka received multiple backlashes showing a divide of opinions from LGTQIA+ support groups and religiously inclined movements, labelling the act as blasphemous. However, despite these, on a decision dated June 10, 2024, the RTC Branch 184 of Manila, acquitted Drag Artist Pura Luka Vega for the acts accused due to the failure of the prosecution to establish guilt beyond reasonable doubt.¹²

The RTC in this interesting case, interpreted the contentions of the parties by centralizing on the issue of whether the acts of Pagente, taken as a whole, in the exercise of her freedom of expression as a drag artist, constitutes a crime under the meaning of the Revised Penal Code, specifically Article 201 which is the crime alleged. Ruling on the negative, the court's *ratio decidendi* rested on the analysis of the defense of Pagente, where it recognized drag as a form of art and expression that falls squarely under the protected freedom of speech, but moreover emphasizing that while this remains under a veil of protection, considering that it is but one's freedom to expression, a balance should be stricken as to the limits of such constitutional freedom, given that it is not absolute, granting further that the prosecution's failure to establish guilt from Pagente's end, raises an iota of doubt of her guilt.¹³

This raises the question: *where does the queer and trans voice stand online?*

The case of *People v. Pagente* opens a multitude of issues in the appreciation of one's constitutional rights in the online space. But however, it also reinforces the plight of the queer struggle, putting into question of how one is able to marry the need to prioritize the rights of people belonging to the marginalized sector and in the limits to exercising one's freedom to express. True, that constitutional rights may be subject to regulation and certain limitations, but what also holds truth is the fact that in the struggle towards liberating the third sex, it is imperative that binary ideals and traditions are often challenged, recognizing that the core of the issue also rested on the bounds of one's exercise of the freedom to speech.

This case reinforces the continued struggles of the queer community as members of the marginalized sector and the significance of their freedom of expression, by whatever means they deem expression to be, as an imperative to concretize their space in society. What remains relevant in this discussion vis

¹² *People v. Pagente*, Criminal Case No. R-MNL-23-06927-CR, (June 10, 2025) (Phil)

¹³ *Id.*



a vis the digital evolution is the analysis of how freedom of expression in social media either exacerbates or elevates the struggles that are experienced by various communities in status quo. While the court recognizes Pagente's freedom to express her faith and beliefs through drag, it also asserted how mutual respect, and due consideration should be of paramount importance in exercising these constitutionally guaranteed freedoms. One's access to social media spaces already opens a window of opportunity to share their views and opinions free from scrutiny, but subject to adherence to community guidelines and policies. Ultimately, no person should be castigated for expressing their views and opinions, for as long as this does not cause danger or harm to the public.

Arguably, in *People v. Pagente*, while one of the main contentions raised is the immoral act of portraying drag suggesting an offense to religious feelings, taken as a whole, subjects itself only to a proportionate subject of the devotees of the black Nazarene, which lacks substantial basis in its application of tests and jurisprudence¹⁴; what is more sensational in the RTC's decision, is its ability to recognize that what may be deemed immoral and indecent in this case, is an expression of self and art, which is and should be recognized, this being a long standing tradition of queer and trans Filipinos. While the case continues to open a door of discussion, it clarified further that further safeguards bounded by mutual respect should be made by all actors involved in the case.

The Pura Effect

The case of Pura Luka Vega remains as a controversial discussion in various social media sites. This has collectively shaped an opinion that has divided different Filipinos of different backgrounds. The recent RTC decision in the case of *Pagente v. People*, significantly places online queer expression at a critical position.

While it gained support from its social media base including the organic queer community, it also attracted hate speech from those who form dissenting opinions. These reactions form a consciousness on the current state of the queer community's freedom to express oneself and the freedom to express their beliefs, greatly presenting the need to further democratize social media platforms to encourage open and critical communication. While there are some laws that ought to create safeguards for people online, they may function as

¹⁴ *Id at 5*



double-edged swords. This entails the need to have basic human rights protection for people belonging to the LGBTQIA+ Community to genuinely protect them from discrimination and abuse whether online or offline.

This, notwithstanding the shared traditional Filipino values of the binary male and female, calls not only for protected speech, but freedom to celebrate speech and expression, not to position oneself in a pedestal, but to actively promote and reclaim the liberty that is guaranteed by the highest law of the land.

To a certain effect, the case of *People v. Pagente* opens the possibility of harmonizing rights that are positioned at polar ends, that is of queer rights and religious rights.¹⁵ This question further expands itself in further understanding of how communities in social media sites respond to certain controversies, that either empowers or challenges them at large.

Towards cementing the Queer's Freedom of Expression

The collective struggle of the LGBTQIA+ community online does not only concern itself with the struggles of the queer community but also intersects to the greater struggle of gender equity. In a society built upon patriarchal standards, queer expressions should be protected and democratized, queers being human beings, having the basic human right to freedom of speech and expression.

The exercise of one's freedom of expression is a gateway to democratizing speech and communication to enable the realization of the rights that are owed to people belonging to the marginalized sector. Social media as a platform, has proven its influences on different regions in the country and even the world. All these demonstrates how it may be used as a weapon for positive social change, that takes form of different social media campaigns, such as the Trans Lives Matter movement and the #MeToo or a machinery for destruction, manifesting itself in fake news, misinformation, and hate speech online. Thus, the right to one's freedom of expression should be safeguarded as speech informs the collective, shapes public opinion, and solidifies movements.

¹⁵ Eufemio, Joanna, Taroma, Ricci Krizzane, *Rainbow or Relic: Drawing the Line Between Freedom of Religion vs. LGBTQIA+ Freedom of Expression*, (May 2024), https://www.researchgate.net/publication/381584454_Rainbow_or_Rellic_Drawing_the_Line_Between_Freedom_of_Religion_vs_LGBTQIA_Freedom_of_Expression/citation/download



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To this date, the fabric of queer reality should only weave a strong tapestry in social media spaces given that it is not a mere privilege but a right. The freedom of expression places itself in a continuum to emancipate the third sex from the double standards imposed by hegemonic forces in society.

Bibliography

Constitution

1987 Constitution.

Jurisprudence

People v. Pagente, Criminal Case No. R-MNL-23-06927-CR, (June 10, 2025) (Phil)

Government Article

Philippine Commission on Women, Women's Priority Legislative Agenda, Enacting a Law Prohibiting Discrimination based on Sexual Orientation, Gender Identity, and Expression (SOGIE), (2019), <https://pcw.gov.ph/assets/files/2019/10/PCW-WPLA-PB-08-Enacting-the-Anti-Discrimination-based-on-SOGIE-Act-AEB.pdf>

Journals

Barassi V, Social Media Activism, Self-Representation and the Construction of Political Biographies in Routledge Companion to Media and Activism, (2018), https://research.gold.ac.uk/id/eprint/23736/3/V.Barassi%20Media%20Activism_Routledge%20Companion.pdf

Delos Reyes, Rod Charlie and Blanco, Mark André, Anti-Discrimination Bill based on SOGIE: An Occupational Justice Perspective, (February 2022), socialhealthjournal.ust.edu.ph/wp-content/uploads/2022/02/Anti-Discrimination-Bill-based-on-SOGIE-An-Occupational-Justice-Perspective.pdf

Eufemio, Joanna, Taroma, Ricci Krizzane, Rainbow or Relic: Drawing the Line Between Freedom of Religion vs. LGBTQIA+ Freedom of Expression, (May 2024), https://www.researchgate.net/publication/381584454_Rainbow_or_Relic_Drawing_the_Line_Between_Freedom_of_Religion_vs_LGBTQIA_Freedom_of_Expression/citation/download



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Kyomugisha, Asiimwe, The Impact of Social Media on Legal Advocacy, (December 2024), https://www.researchgate.net/publication/387437388_The_Impact_of_Social_Media_on_Legal_Advocacy

Murthy, Dhiraj, Introduction to Social Media, Activism, and Organizations, (2018), journals.sagepub.com/doi/pdf/10.1177/2056305117750716
Universal Periodic Review, HUMAN RIGHTS AND THE PHILIPPINE DIGITAL ENVIRONMENT, (2016), https://upr-info.org/sites/default/files/documents/2017-04/js11_upr27_phl_e_main.pdf

Wike, Richard, Silver Laura, Fetterolf, Janell, Huang, Christine, Austin, Sarah, Clancy, Lura, and Gubbala, Sneha, Views of social media and its impacts on society, (December 6, 2022), <https://www.pewresearch.org/global/2022/12/06/views-of-social-media-and-its-impacts-on-society-in-advanced-economies-2022/>

Articles

Abad, Michelle, TIMELINE: SOGIE equality in the Philippines, (August 28, 2019), <https://www.rappler.com/newsbreak/iq/238593-timeline-sogie-equality-philippines/>

Amnesty International, Philippines: Authorities increasingly using Facebook to stifle young activists' right to freedom of expression and protest, (2014), <https://www.amnesty.org/en/latest/news/2024/10/philippines-authorities-using-facebook-to-red-tag-young-activists/>